



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8923 (PTE)
THIRD REVISION November 10, 1988
SECOND CORRECTED COPY

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 8923. The expiration date of the exemption for the party(ies) is June 30, 1994.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.

Suzanne Hegesert
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 20 1992
(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Bitec Southeast, Inc.
Tampa, FL

May 20, 1992

Praxair, Inc.
Danbury, CT

June 5, 1992

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DOT-E 8923
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1. Union Carbide Corporation, Danbury, Connecticut, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages of flammable liquids which are also corrosive for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of flammable liquids which are also corrosive in DOT Specification 51 portable tanks, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on applications from Union Carbide Corporation dated August 8, 1988, submitted in accordance with 49 CFR 107.105 and 107.103 respectively, and the public proceeding thereon and letter dated September 1, 1988.
3. HAZARDOUS MATERIALS (Descriptor and class). Dichlorosilane, classed as flammable liquid, and Trichlorosilane mixed with not more than 40% dichlorosilane, classed as flammable liquid.
4. PROPER SHIPPING NAME (49 CFR 172.101). Flammable liquid, corrosive, n.o.s.
5. REGULATION AFFECTED. 49 CFR 173.3a, 173.119(m).
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packagings prescribed are DOT Specification 51 portable tanks having a nominal water capacity of 1,400 U.S. gallons. The portable tanks are manufactured from carbon steel, have a minimum shell and head thickness of 5/16 inch, a minimum design pressure of 100 psig and have a nominal I.D. of 54 inches. The tanks bear manufacturer's serial numbers 47028, 47029, 17267-3 and 17267-4.
8. SPECIAL PROVISIONS.
 - a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
 - b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

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c. Before being used in compressed gas service, any tank used under this exemption must be retested in accordance with 49 CFR 173.32.

d. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 8923".

e. Each portable tank used to transport materials requiring a special packaging approval as specified in 49 CFR 173.3a must:

- (1) Be marked on both sides "INHALATION HAZARD" in letters at least three and one-half inches high on a contrasting background in close proximity to the required placards;
- (2) Be insulated with six inches of fiberglass compressed to a nominal thickness of four inches covered with a stainless steel jacket;
- (3) Be secured to the motor vehicle by a system which conforms with the requirements contained in 49 CFR 393.100 through 393.106; and
- (4) Be padded with nitrogen or an inert gas.

f. The following additional requirements apply to the transportation of materials requiring a special approval under the provisions of 49 CFR 173.3a.

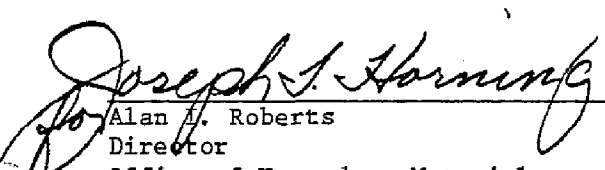
1. The exemption serves as a special packaging approval under the provisions of 49 CFR 173.3a(a)(3);
2. Each motor carrier used to transport packagings authorized by this exemption must have a safety rating, as assigned by the Office of Motor Carriers Safety Field Operations (OMCSFO), Federal Highway Administration, of "Satisfactory". Written verification of the safety rating for each motor carrier must be obtained at least once each year. A copy of the safety rating notification letter for each motor carrier, as received from OMCSFO must be submitted with the annual report required by this exemption;
3. In addition to the requirements of 49 CFR 171.15 and 171.16, the Exemptions Branch, Office of Hazardous Materials Transportation (OHMT) must be notified of any incident involving damage to the packaging or loss of contents of material shipped under this exemption;
4. The Exemptions Branch, OHMT shall be advised of the causes of the incident and any remedial action taken as a result of the incident as soon as practicable after its occurrence; and

5. The Exemptions Branch, OHMT must be advised annually, within 30 days after the end of the calendar year, of the shipping experience of material covered by this approval. Failure to comply may result in immediate suspension of this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. October 1, 1990.

Issued at Washington, D.C.:


Alan A. Roberts
Director
Office of Hazardous Materials
Transportation

NOV 10 1988

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

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